

FILED BY: AVALOS, JAVIER

TENTATIVE RULING:

The Court has reviewed the request and finds it lacking in medical records (only billing records were submitted). The Court will continue this Motion to September 24, 2026, at 9 a.m. to allow counsel to submit the necessary supplemental documentation.

20. 9:00 AM CASE NUMBER: N26-0720

CASE NAME: CLAIM OF:LEVI SINGER

***HEARING ON MINOR'S COMPROMISE**

FILED BY: SINGER, SCOTT

TENTATIVE RULING:

The Court has reviewed the request and finds it lacking in medical records and a fee agreement between counsel and the client/Guardian ad Litem. The Court will continue this Motion to September 24, 2026, at 9 a.m. to allow counsel to submit the necessary supplemental documentation.

Discovery Law & Motion

21. 9:01 AM CASE NUMBER: C25-02337

CASE NAME: JOSE BARRERA GALEANA VS. BRANT ADERMAN

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF JOSE BARRERA GALEANA'S FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE**

FILED BY: ADERMAN, BRANT

TENTATIVE RULING:

Before the Court is Defendant Brant Aderman's Motion to Compel Plaintiff Jose Barrera Galeana's Further Responses to Form Interrogatories, Set One. This case involves a motor vehicle accident.

The sole issue on this motion is Plaintiff's failure to respond substantively to a single Form Interrogatory. Defendant propounded a form interrogatory regarding prior felony convictions. Plaintiff served objections only, as follows: "The likelihood that discovery will lead to admissible evidence is outweighed by burden, expense, or intrusiveness (CCP §2017.020(a)), the discovery is unreasonably cumulative or duplicative (CCP §2019.030(a)(1)), the discovery is obtainable from another, less burdensome source (CCP §2019.030(a)(1)), or the party is using discovery in a way that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. CCP § 2023.010(c))."

The vast majority of these objections are incredibly inapposite. There can be no showing that listing prior felony convictions would be burdensome or expensive. Even an extremely long rap sheet would not be burdensome to disclose. Nor can it be "unreasonably cumulative or duplicative"—the Court cannot understand that objection at all. Plaintiff fails to explain how a civil defendant could obtain this information from "another, less burdensome source." Finally, this *form* interrogatory is not inherently an improper use of discovery. As Defendant properly indicates, felony convictions may be relevant for

credibility purposes.

Importantly, what Plaintiff entirely failed to do was even answer this Interrogatory in part. A good faith response would have provided only the admissible scope of felony convictions—if any—under Evidence Code sections 788 and 352 (as interpreted by case law) and been explicit as to the limitations. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 (“A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.”).) There would even have been the opportunity to keep this information between only the parties until trial.

Plaintiff’s wholesale failure to respond to this inquiry was not in good faith. His various objections are inapposite. Defendant’s request for sanctions in the amount of \$1,680.00 is appropriate here.

Defendant’s Motion to Compel is therefore **granted**. Plaintiff must amend his response to include felony convictions as requested within 15 days of this order. He must further pay \$1,680.00 to counsel for Defendant within 30 days of this order.

22. 9:01 AM CASE NUMBER: C25-02337

CASE NAME: JOSE BARRERA GALEANA VS. BRANT ADERMAN

***HEARING ON MOTION FOR DISCOVERY TO COMPEL PLAINTIFF JOSE BARRERA GALEANA'S FURTHER RESPONSE TO REQUESTS FOR PRODUCTION, SET ONE, OR, IN THE ALTERNATIVE, REQUEST TO COMPEL PLAINTIFF TO SIGN AN AUTHORIZATION FORM TO ENABLE DEFENDANT TO OBTAIN THE REQUEST RECORDS INDEPENDENTLY**

FILED BY: ADERMAN, BRANT

TENTATIVE RULING:

Before the Court is Defendant Brant Aderman’s Motion to Compel Plaintiff Jose Barrera Galeana’s Further Responses to Requests for Production of Documents, Set One. This case involves a motor vehicle accident.

The sole issue in this Motion is a single request for production of documents. Initially Defendant sought for Plaintiff, in the alternative, to provide authorization for Defendant to acquire the documents by subpoena. In reply, Defendant appears to have abandoned that request.

Defendant seeks documents relating to phone calls or text messages made or received on Plaintiff’s cell phone from one hour before and one hour after the accident. Plaintiff responded: “Pursuant to Civ. Proc. Code § 2031.230 this Responding Party is unable to comply with the particular demand for inspection, copying, testing, or sampling. This Responding Party affirms that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. The inability to comply is due to the particular item or category has never existed, or is not or has never been, in the possession, custody, or control of this Responding Party. Investigation and discovery are continuing with regards to documents relevant to this request.”